

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

Appellate No. SYN-CA4-26-CV-4103 · Guild Stay Response

Filed February 4, 2026

Appellee Piedmont Booksellers Guild opposes the City's Rule 8 motion. The City followed the required sequence by applying to the district court on January 26 and presenting that court's January 28 denial here. Procedural compliance permits consideration; it does not create a presumption in favor of suspending the January 23 injunction. The City must satisfy the equitable standard on the record already developed.

Nken v. Holder requires a strong showing of likely success and a likelihood of irreparable injury, followed by consideration of substantial harm to the opposing party and the public interest. The first two factors are critical. The district court applied those considerations after it had already heard the preliminary-relief evidence and correctly found that the City raised reviewable questions without establishing grounds to restore the burdens during this event cycle.

The Guild does not defend ambiguity or ask this Court to ignore Rule 65. If the operative language or security treatment requires correction, the Court can order a focused remedy while preserving uninterrupted protection. The motion instead asks speakers and small booksellers to bear the consequences of defects that can be cured without reviving a paid-speaker charge, early roster lock, or uncertain amendment process.

The February 14 fair is ten days away. A stay entered now would alter invitations, advertising, and commitments at the moment the injunction was intended to protect them.

The City Has Not Shown Likely Reversal of Central Relief

The preliminary ruling did not rest on a finding of ideological censorship. It accepted content neutrality and the City's legitimate interests in crowd movement, traffic, emergency access, and resource planning. The likely constitutional problem is the mismatch between those interests and a rule triggered by whether a scheduled speaker receives compensation. That question survives every assurance that administrators will not inspect viewpoints.

Operational facts can be requested directly. The Guild supplies the presentation's time, place, format, equipment, expected audience, event attendance, loading plan, and emergency contact. A stipend does not reveal whether an author requires another officer, blocks a transit stop, changes chair placement, or needs sanitation service. An unpaid presenter can draw a larger gathering than a paid local writer. The City's fair organizer made the same practical distinction in the district record.

The ordinance adds \$45 for each paid presenter without linking that increment to a measured service. Its short pilot history does not isolate per-speaker labor. It also requires a name and topic forty-five days ahead while setting no dependable response time or materiality boundary for later substitutions. Those requirements influence the program before any official denies an application.

At this stage, the City offers policy reasons for the chosen proxy and points to possible factual development. Possible development supports continued litigation below; it does not constitute a strong showing that the record-based preliminary protection will be reversed.

Rule 65 Concerns Call for Correction, Not Suspension

The City argues that the January 23 order does not describe the restrained acts with adequate precision. The memorandum, however, supplies a clear core: officials may regulate actual logistical features but may not condition the Guild's 2026 program on the required paid-speaker name, subject line, or per-speaker payment. It preserves reservations, capacity, traffic, emergency access, sanitation, layout, competing uses, and responses to materially changed conditions.

If Rule 65(d) requires those distinctions to appear in a more detailed operative paragraph, the proper response is clarification. The Guild would not oppose an order enumerating the affected provisions and confirming the City's retained powers. Specificity can reduce contempt uncertainty without reinstating burdens the district court found likely unconstitutional.

The omitted security discussion is similarly severable. The City proposed no amount and documented no compensable loss that a bond would secure. Its administrative work remains authorized, and it now offers to suspend the speaker increment as partial relief. The Court could remand for the district court to state a supported amount, including zero or a nominal sum if lawful, while holding the existing protection in place during that limited correction.

A likelihood of obtaining some modification is not a likelihood of defeating the Guild's entitlement to interim protection. The stay inquiry must examine the relief actually requested, which would expose the February program to the disputed scheme before precision and security questions could be resolved.

No Irreparable Municipal Injury Has Been Established

The City retains every immediate tool shown to be necessary at Cedar Commons. It may require a site diagram, total-attendance estimate, schedule, presentation format, equipment list, loading window, emergency contact, and updated audience estimate. It may preserve a service lane, keep chairs away from the fountain bottleneck, address transit access, enforce capacity, and reconcile a competing reservation. A documented material change may support a written condition.

The City describes uncertainty about whether a question originates in the enjoined ordinance or a general park rule. The practical answer is to ask for the operational fact the injunction expressly permits, not to demand compensation status or ideological detail. No employee declaration identifies a needed February measure that cannot be imposed. The parties have continued conferring, and the Guild has not refused a concrete safety direction.

Lost planning time is therefore not attributable to the injunction. Staff can plan from the same variables it says matter. The peaceful history—no violence, two minor medical calls, and ordinary congestion—does not eliminate future risk, but it confirms that physical coordination rather than a paid-speaker proxy has managed past conditions.

Nor do temporarily uncollected charges establish irreparable harm. The City has not tied the \$45 increment to an indispensable service or shown that its absence will disable event review. Administrative inconvenience and policy displacement do not satisfy *Nken* when the challenged order leaves the underlying governmental interests fully enforceable through neutral means.

A Stay Would Cause Immediate and Recurring Expressive Harm

The Guild's harm arises while programs are assembled. Authors decide whether to reserve a date, arrange travel, accept an honorarium, and decline other invitations. Booksellers decide whether event costs permit a table or sponsorship. Publicity must be accurate before readers make plans. A later merits decision cannot recreate a presentation omitted because approval remained uncertain during this window.

February 14 is the nearest date, not the only one. Further fairs are announced for April 11, June 13, August 8, October 10, and December 12. The same forty-five-day roster problem and cumulative charges recur as each program develops. Moving a missed author to another date is not an adequate substitute because publication schedules, caregiving, vendor availability, and audiences change.

The City's three-business-day proposal begins after a "complete" request. That qualifier leaves the central uncertainty intact when the organizer cannot finalize a roster at the original deadline or when staff considers a substitution operationally different. The proposal is constructive as a minimum response rule, but it should supplement the injunction rather than serve as a reason to remove it.

The City promises not to act on viewpoint, and the Guild credits that representation. Yet a neutral process can still chill speech through cost, timing, and uncertainty. Restoring those burdens for even a short expedited period would shift the risk of legal error onto events that cannot be repeated.

Neutral Safety Authority Remains Fully Available

The Guild has never sought immunity from rules governing physical use of public property. It accepts date-specific review because road work, weather, another reservation, or a changed layout may affect one Saturday differently from another. It will provide truthful logistical updates and comply with a condition supported by an identified crowd, traffic, access, sanitation, or staffing fact.

For the February fair, the organizer has preserved the service entrance, separated unloading from public hours, placed the reading area away from the bus boarding space, and used the historical seller range in the plan. A change that adds amplification, moves a presentation, increases expected attendance, or requires new equipment may warrant prompt review. Merely replacing one author in the same slot does not necessarily produce any of those effects.

The district injunction allows officials to examine that distinction. It does not command approval of every amendment or prevent emergency action. It denies priority over an existing reservation and gives no permission to obstruct streets or exceed lawful capacity. If a concrete dispute develops, the City may seek targeted modification on a factual record rather than obtain a categorical stay based on possible problems.

This retained authority answers the City's public-safety concern while respecting the preliminary finding. The balance is especially appropriate because the ordinance's written-reason and documented-risk safeguards can continue to guide transparent decisions without using the contested trigger as a prerequisite to the Guild's program.

The Equities and Public Interest Favor Continuity

Safe public space and free literary expression are complementary public interests. Readers, transit users, nearby businesses, vendors, and pedestrians all benefit when the City and Guild coordinate from concrete event information. The existing order leaves that cooperation intact. A stay would add the disputed costs and advance disclosure without establishing that they improve the immediate physical plan.

The City emphasizes uniform administration for other organizers. The injunction is limited to this Guild and its announced 2026 Cedar Commons fairs. It does not facially invalidate the ordinance for every event. Different gatherings may present different records, and officials remain able to administer the enactment outside the defined protection subject to ordinary law. That limited scope reduces any systemic disruption.

The public also benefits from judicial orders that are precise. The Guild supports a clarifying order stating exactly which speaker-specific requirements are restrained and which neutral measures remain available. It likewise supports an expedited merits schedule after completion of the record. Neither step requires suspension of the injunction during the final days before the first fair.

Maintaining the present protection avoids abrupt changes while the Court considers a focused interlocutory appeal. It does not signal a final merits outcome. Discovery may strengthen or weaken either party's position, and the municipality may amend its rules. The stay factors concern the present record and immediate injuries, on which continuity is less harmful and more protective of the public.

Partial Relief and Conclusion

The City's alternative would restore advance names and short topics while leaving the \$45 increment suspended. Time, format, equipment, location, and expected audience are legitimate operational facts, and the Guild already agrees to supply them. The present record does not show why literary identity or subject is also necessary when those practical features remain unchanged. An author can be identified when confirmed without making early identity a condition of participation.

If immediate adjustment is warranted, the Court should clarify rather than partially revive the disputed fields. It may enumerate the restrained speaker-specific requirements, confirm the City's neutral safety authority, and require a written response to a material amendment within three business days. The Guild can be directed to update attendance, time, format, equipment, and location promptly. The district court also can address security expressly without allowing the injunction to lapse during that correction.

The Rule 8 motion should be denied because the City has not made the showing *Nken* requires. The current evidence supports the district court's mismatch finding; broad operational powers reduce any municipal injury; and a stay would expose recurring, time-sensitive programs to costs and uncertainty that cannot be repaired later. A more precise order can protect officials without transferring that risk to authors and small booksellers.

This response relies only on the motion materials and district record, adds no declaration, and seeks no permanent merits ruling. Counsel certifies electronic filing and service on February 4, 2026. The Guild consents to expedited consideration while requesting denial of full, partial, and administrative stay relief.